

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Manukyan	Team: Squad #06	CCRB Case #: 201510247	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/01/2015 9:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/1/2017	Precinct: 25		
Date/Time CV Reported Thu, 12/03/2015 10:28 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/03/2015 10:28 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Thomas Boller	1463	946794	PSA 5		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Michael Marrone	14303	951970	PSA 5		
2. POM Stanislav Makiyenko	16491	944757	PSA 5		
3. POM Ilbey Aykac	28612	945486	PSA 5		
Officer(s)	Allegation	Investigator Recommendation			
A . SGT Thomas Boller	Discourtesy: Sergeant Thomas Boller spoke discourteously to § 87(2)(b)	A . Unsubstantiated			
B . SGT Thomas Boller	Abuse: Sergeant Thomas Boller threatened to arrest § 87(2)(b)	B . Exonerated			

Case Summary

On December 3, 2015, § 87(2)(b) called the CCRB to file this complaint (BR 01).

On December 1, 2015, at approximately 5:15 p.m., Sgt. Thomas Boller, with his vehicle operator PO Michael Marrone, arrived at § 87(2)(b) § 87(2)(b) in Manhattan. § 87(2)(b) § 87(2)(b)'s husband, had filed a complaint with the NYPD alleging that § 87(2)(b) had broken the lock he had placed on their bedroom door, to safeguard his possessions. § 87(2)(b) was taken to the PSA 5 Precinct stationhouse and was released at 5:35 p.m. after her arrest was voided. That same day, at approximately 9:35 p.m., Sgt. Thomas Boller and PO Marrone responded again to a family dispute at § 87(2)(b) § 87(2)(b) § 87(2)(b) was lying on the floor outside of the apartment when Sgt. Boller and PO Marrone arrived on scene. The officers approached § 87(2)(b) and Sgt. Boller asked § 87(2)(b) general questions about what happened to her. Sgt. Boller then allegedly told § 87(2)(b) "Get your ass in that room, over there, or I will lock you up" (**Allegations A and B**). Sgt. Boller and PO Marrone proceeded to speak with § 87(2)(b) during which time § 87(2)(b) stood up off the floor and walked to her bedroom. An ambulance was subsequently called for § 87(2)(b) who was feeling unwell. Sgt. Boller and PO Marrone escorted § 87(2)(b) to the ambulance and left the scene.

The investigation was unable to obtain any video footage of the incident.

There were no arrests made or summonses issued during this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation because § 87(2)(b)
- As of February 9, 2016, § 87(2)(b) has not filed a Notice of Claim with respect to this incident (BR 08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR 07).
- Sgt. Boller has been a member of the service for 7 years. There are 3 prior allegations against Sgt. Boller that occurred between 2010 and 2013, two of which have been substantiated, § 87(2)(g). In 2013, two allegations were made against Sgt. Boller: abuse – refusal to provide name/shield number and discourtesy – word. These allegations fell under CCRB case #201311473. The board recommended instructions, which was the NYPD disposition as well.

Findings and Recommendations

Allegation A -Discourtesy: Sgt. Thomas Boller spoke discourteously to § 87(2)(b)

Allegation B –Abuse of Authority: Sgt. Thomas Boller threatened to arrest § 87(2)(b)

It is undisputed that Sgt. Boller told § 87(2)(b) that she could be arrested. § 87(2)(g)

§ 87(2)(b) also alleged that Sgt. Boller spoke to her discourteously during this incident.

In her in-person statement to the CCRB (BR 02), § 87(2)(b) stated that her first interaction with Sgt. Boller was at about 5:15 p.m. on December 1, 2015, when Sgt. Boller arrived on scene in order to verify § 87(2)(b)'s arrest. § 87(2)(b) was arrested at her home, § 87(2)(b) by PO Fazio and was brought to the PSA 5 stationhouse. § 87(2)(b) was released after about five minutes of her arrival and did not receive a summons. § 87(2)(b) met § 87(2)(b) at the precinct and proceeded to take her home.

Upon arriving at their apartment, § 87(2)(b) began physically threatening § 87(2)(b). § 87(2)(b) attempted to call 911 in the hallway, but § 87(2)(b) pushed her onto the floor of the hallway before she was able to make the call. § 87(2)(b) then used her neighbor's phone to call 911, at which point § 87(2)(b) stated that he was going to call 911 as well. About ten minutes later, two officers, with whom § 87(2)(b) did not speak to, entered § 87(2)(b)'s apartment to talk to § 87(2)(b). Ten minutes after their arrival, two more officers, one of whom was Sgt. Boller, arrived at the scene and approached § 87(2)(b). Sgt. Boller asked § 87(2)(b) why she was on the floor and other details about what had happened to her. Sgt. Boller thought § 87(2)(b) was lying and did not believe she was injured. Sgt. Boller then told § 87(2)(b) "Get your ass in that room, over there, or I will lock you up". There were no possible witnesses that may have heard Sgt. Boller make these comments. § 87(2)(b) replied that she was incapable of standing up, to which Sgt. Boller responded asking whether she needed an ambulance. Sgt. Boller proceeded to go inside § 87(2)(b)'s apartment to speak with § 87(2)(b). After about fifteen minutes, § 87(2)(b) went into her apartment and inside of her bedroom. Sgt. Boller escorted § 87(2)(b) out of the apartment and into an ambulance. During her in-person statement, § 87(2)(b) stated that her doctor had previously informed her that her memory is affected by a medical condition she suffers from. § 87(2)(b) stated that this condition made it difficult for her to remember details from the incident.

In his phone statement to the CCRB (BR 03), § 87(2)(b) said that after § 87(2)(b) was released from the precinct stationhouse on December 1, 2015, she attempted to provoke him. § 87(2)(b) proceeded to call the police. According to § 87(2)(b) upon their arrival, the officers asked § 87(2)(b) if they could help her up, and then told her to go into the back room because she was speaking over them when they were interviewing § 87(2)(b). The officers also told § 87(2)(b) that it is illegal to falsely accuse someone of a crime. § 87(2)(b) was then taken to the hospital.

§ 87(2)(b) thought § 87(2)(b)'s complaint to be “baseless”. He stated that the officers did not use derogatory language at any point during the incident.

Sgt. Boller (BR 04) said that he and his vehicle operator, PO Michael Marrone, responded to § 87(2)(b) at 5:15 p.m. and proceeded to speak with the officers on scene, who told Sgt. Boller that a report was prepared for criminal mischief against § 87(2)(b). After speaking briefly with § 87(2)(b) who provided information about his complaint, Sgt. Boller felt that he needed to review the complaint report. § 87(2)(b) was handcuffed and brought to the precinct stationhouse. At the precinct stationhouse, Sgt. Boller reviewed the complaint report and realized that the report was filed in error as there was no cause for a lawful arrest. § 87(2)(b)'s arrest was voided and she was subsequently released after five minutes. Sgt. Boller advised § 87(2)(b) not to return to her apartment since she was not on good terms with § 87(2)(b).

At 9:35 p.m. the same day, Sgt. Boller and PO Marrone responded back to the residence. Upon reaching the § 87(2)(b), Sgt. Boller saw § 87(2)(b) sitting on the floor of the hallway, leaning against the wall. Sgt. Boller asked § 87(2)(b) what had happened, to which § 87(2)(b) responded that her husband had assaulted her, thrown her out of the apartment and onto the ground. She did not provide any more details, did not state the extent of the physical contact and refused to answer any more of Sgt. Boller's questions. Sgt. Boller proceeded to enter § 87(2)(b)'s apartment and speak with § 87(2)(b) who stated that § 87(2)(b) had run out into the hallway screaming and had thrown herself to the floor. Sgt. Boller exited the apartment and again asked § 87(2)(b) if she had any injuries or complaints of pain. § 87(2)(b) again refused to respond to Sgt. Boller. Sgt. Boller did not believe that § 87(2)(b) was injured because she did not state she had any kind of injury and was not responding to his questions. Sgt. Boller thought that § 87(2)(b) was attempting to get § 87(2)(b) arrested in retaliation to the incident which occurred prior that day. Sgt. Boller acknowledged that he told § 87(2)(b) that she could possibly be arrested for making a false police report. Sgt. Boller also acknowledged that he proceeded to tell § 87(2)(b) that if she did not get up, he was going to send her to the hospital. Sgt. Boller did not threaten to arrest § 87(2)(b) but was informing her of the situation. Sgt. Boller never said, “Get your ass in that room, over there, or I will lock you up”. § 87(2)(b) did not respond and walked to her bedroom without issue. Sgt. Boller went inside the apartment and spoke with § 87(2)(b) for a second time. § 87(2)(b) appeared to be unwell and stated that he had not taken his medication for a few days. An ambulance was subsequently called for § 87(2)(b).

PO Marrone (BR 05) said that when he and Sgt. Boller arrived at § 87(2)(b)'s residence for the second time, § 87(2)(b) was sitting in the hallway and did not appear to be injured in any way. PO Marrone stated that § 87(2)(b) appeared to be “faking it”. Sgt. Boller and PO Marrone entered the apartment and spoke with § 87(2)(b). Sometime during the officers' conversation with § 87(2)(b) § 87(2)(b) stood up and walked into her bedroom. § 87(2)(b) then stated that he was not feeling well, so the officers called for an ambulance for him. Sgt. Boller was never alone with § 87(2)(b) at any point.

Even though PO Marrone originally said that § 87(2)(b) stated that she would get the police to arrest her husband in retaliation for her arrest, he later stated that he did not recall § 87(2)(b) saying anything during the incident. Also, despite initially stating that Sgt. Boller spoke to § 87(2)(b) first, he later said that he did not recall speaking with § 87(2)(b) at any point during the incident. PO Marrone denied that either he or Sgt. Boller ever had any intention of arresting § 87(2)(b) during the second part of the incident. PO Marrone denied that any officer told § 87(2)(b) “Get your ass up and in that room, over there, or I will lock you up”.

An officer commits an abuse of authority when he threatens to make an arrest for which he lacks probable cause. PD v. Bradley, OATH Case 75419/00 (2001) (BR 06). However, an officer is allowed to disclose to a civilian that they may be committing a penal law offense which they may be arrested for. NYS Penal Law 240.50 (BR 07).

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **unsubstantiated**, while **Allegation B** be closed **exonerated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date